

Neutral Citations

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Prasanta Kumar Sarkar (S) v. Ashis Chatterjee & Anr. (S)

Supreme Court Of India (Oct 29, 2010)

CASE NO.

Criminal Appeal No. 2086 of 2010 (Arising out of S.L.P (Crl.) No. 4590 of 2010)

DISPOSITION

ALLOWED

JUDGES

- Justice H.L. Dattu
- Justice D.K. Jain

ATTORNEY

- Ujjwal Banerjee
- Nagender Rai
- Satish Vig.
- Mrs. Sarla Chandra
- Mrs. Namita Roy
- Asit Kumar Rari
- Harish Pandey
- Ms. Babita Sant
- C.K. Rai

SUMMARY**Factual and Procedural Background**

Ms. Mallika Sen, a 57-year-old widow, was found strangled in her residence on 2 July 2009. Her brother (the present appellant) lodged a complaint, leading to FIR No. 111/09 under Section 302 IPC at Rampurhat Police Station.

The respondent-accused, allegedly seen leaving the victim's house around the time of the *murder* by neighbour Somenath Dutta, was arrested on 13 July 2009. A Test Identification Parade (TIP) was held; although the first TIP was inconclusive, the witness identified the accused in a second TIP.

Three bail applications before the Additional Chief Judicial Magistrate were rejected on 7, 16 and 19 September 2009. A charge-sheet (No. 138/2009) under Section 302 IPC was filed on 7 October 2009. When the Sessions Court also refused bail, the accused moved the Calcutta High Court under Section 439 CrPC. By order dated 11 January 2010 (C.R.M No. 272 of 2010), the High Court granted regular bail, stating only that further detention was not required for investigation. The complainant appealed to the Supreme Court, resulting in the present judgment.

Legal Issues Presented

1. Whether the Calcutta High Court's order granting bail to an accused charged with *murder*, without recording detailed reasons, was sustainable in law.
2. Whether the High Court properly applied the settled principles governing grant of bail under Section 439 CrPC, particularly when earlier bail requests had been repeatedly rejected by the trial court.

Arguments of the Parties

Appellant's Arguments

- The High Court's order is a non-speaking one and therefore violative of the requirement laid down in *Masroor v. State of U.P.* that reasons must be indicated while granting bail, especially in serious offences.
- The gravity of the offence — *murder* of an elderly, helpless woman — and the eyewitness identification were ignored by the High Court.

Accused's Arguments

- The case is allegedly false; the witness failed to identify the accused in the first TIP, indicating weak evidence.
- The accused was arrested merely on suspicion and, having not misused liberty while on bail, the High Court's order should stand.

Table of Precedents Cited

Precedent	Rule or Principle Cited	Application by the Court
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	For	
<i>Masroor v. State of U.P.</i> (2009) 14 SCC 286	Bail orders must contain reasons, particularly in serious offences.	Supreme Court noted the High Court's failure to record reasons and held the order unsustainable.
<i>State of U.P. through CBI v. Amarmani Tripathi</i> (2005) 8 SCC 21	Enumerates factors relevant for granting or refusing bail.	Used as the principal statement of the governing factors the High Court failed to consider.
<i>Prahlad Singh Bhati v. NCT of Delhi</i> (2001) 4 SCC 280	Reiterates criteria for bail and judicial discretion.	Cited as additional authority on mandatory considerations for bail.
<i>Ram Govind Upadhyay v. Sudarshan Singh</i> (2002) 3 SCC 598	Highlights the need for cautious exercise of bail discretion.	Reinforced that the High Court must weigh all factors before granting bail.
<i>State of Maharashtra v. Ritesh</i> (2001) 4 SCC 224	Importance of recording reasons in bail matters.	Referenced to support the requirement of a reasoned order.
<i>Panchanan Mishra v. Digambar Mishra</i> (2005) 3 SCC 143	Standards for granting bail in serious crimes.	Cited in the chain of authorities underscoring reasoned discretion.
<i>Vijay Kumar v. Narendra</i> (2002) 9 SCC 364	Need for judicious exercise of bail jurisdiction.	Quoted to fortify the principle that mechanical orders are impermissible.
<i>Anwari Begum v. Sher Mohammad</i> (2005) 7 SCC 326	Cautions against granting bail without adequate scrutiny.	Used to stress that detailed assessment is obligatory.
<i>Kalyan Chandra Sarkar v. Rajesh Ranjan @ Pappu Yadav</i> (2004) 7 SCC 528	When earlier bail applications have been rejected, subsequent orders must give specific reasons.	Supreme Court faulted the High Court for ignoring earlier rejections without explanation.
<i>Ram Pratap Yadav v. Mitra Sen Yadav</i> (2003) 1 SCC 15	Affirms the onus to justify grant of bail after prior refusals.	Relied on to stress the High Court's omission to meet this obligation.

Court's Reasoning and Analysis

The Supreme Court acknowledged that interference with bail orders is exceptional but held that it becomes necessary when the lower court disregards settled principles. The Court observed:

- The High Court did not analyse any of the recognised factors for bail—prima facie evidence, gravity of offence, potential punishment, risk of absconding, or witness intimidation—as mandated in *Amarmani Tripathi* and related cases.
- The order was effectively non-speaking, contravening the rule in *Masroor* that reasons must be stated.
- The accused is charged with a heinous crime—strangulation of an elderly woman—and was seen exiting the victim’s house, creating strong prima facie involvement.
- Multiple bail applications had already been rejected by the trial court; under *Kalyan Chandra Sarkar*, any grant of bail thereafter demanded specific justification, which the High Court failed to supply.
- Charges had not yet been framed, amplifying the need for caution.

Because the High Court “completely lost sight of the basic principles” and passed a mechanical order, the Supreme Court declared the bail order illegal.

Holding and Implications

Holding: The appeal is allowed; the Calcutta High Court’s order dated 11 January 2010 granting bail is set aside. The accused’s bail bond and surety are cancelled and he is to be taken into custody forthwith.

Implications: The decision directly results in the accused’s re-arrest and underscores the judiciary’s insistence on reasoned, principled bail orders. While it reaffirms existing precedent rather than creating new law, the judgment serves as a cautionary reminder that High Courts must articulate specific reasons consistent with established criteria, especially when prior bail applications have been denied.

JUDGMENT

D.K Jain, J.:—Leave granted.

2. This appeal, by special leave, is directed against order dated 11 th January, 2010 passed by the High Court of Calcutta in C.R.M No. 272 of 2010, granting regular bail to respondent No. 1 in this appeal (hereinafter referred to as “the accused”), under **Section 439 of the Code of Criminal Procedure, 1973** (for short “the Code”).

3. The accused is facing trial for an offence punishable under **Section 302 of the Indian Penal Code, 1860** (for short “IPC”) for allegedly committing the *murder* of one Ms.

Mallika Sen. Respondent No. 2 is the State of West Bengal.

4. Very briefly stated the facts material for the adjudication of this appeal can be stated thus:

Ms. Mallika Sen, a 57 years old widow was found strangled at her residence on 2nd July, 2009. The appellant, who is the brother of the victim, lodged a written complaint at the Rampurhat Police Station, on the basis of which FIR No. 111/09 dated 2nd July, 2009 was registered under Section 302, IPC.

It has been alleged that a neighbour of late Ms. Sen, one Mr. Somenath Dutta, saw the accused rushing out of the residence of the deceased, around the time the incident took place. The accused was arrested on 13th July, 2009 and produced before the Additional Chief Judicial Magistrate who remanded him to judicial custody. Thereafter, on the same day, the police filed a forwarding report in the said court, inter alia, requesting for holding of a Test Identification Parade (T.I.P) of the accused. The T.I.P was conducted, but perhaps the accused could not be identified. However, in the second T.I.P, the accused was duly identified by the aforesaid witness.

5. The accused filed several bail applications before the Additional Chief Judicial Magistrate which were all dismissed vide orders dated 7th September, 2009, 16th September, 2009 and 19th September, 2009.

6. On 7th October, 2009, charge-sheet No. 138 of 2009 under Section 302 IPC was filed against the accused before the Additional Chief Judicial Magistrate.

7. Having failed to secure bail from the Sessions Court, the accused preferred a bail application, being C.R.M No. 272 of 2010 before the High Court under **Section 439 of the Code**. As stated above, by the impugned order, the High Court allowed the application, and granted bail to the accused by a short order, observing thus:

“Having regard to the nature of the alleged crime, we do not think that interest of investigation requires or (sic) justifies further detention of the present petitioner at this stage.”

8. Hence the present appeal by the complainant.

9. Mr. Nagender Rai, learned senior counsel appearing on behalf of the appellant, while assailing the impugned order, contended that the said order being non-speaking, deserves to be set aside in light of the decision of this Court in *Masroor v. State of Uttar Pradesh & Anr.* [\(2009\) 14 SCC 286](#). Learned counsel submitted that the High Court has failed to take into consideration the manner in which a hapless old lady was done to death as also the fact that the accused had been duly identified by an independent witness.

10. Per contra, Mr. Ujjwal Banerjee, learned counsel appearing for the accused, contended that the case against the accused was false, as is evident from the fact that the witness had failed to identify the accused in the first T.I.P. Learned counsel contended that the accused had been arrested on a mere suspicion, and in light of the fact that he has not misused the

bail, the impugned order needs to be affirmed.

11. We are of the opinion that the impugned order is clearly unsustainable. It is trite that this Court does not, normally, interfere with an order passed by the High Court granting or rejecting bail to the accused. However, it is equally incumbent upon the High Court to exercise its discretion judiciously, cautiously and strictly in compliance with the basic principles laid down in a plethora of decisions of this Court on the point. It is well settled that, among other circumstances, the factors to be borne in mind while considering an application for bail are: (i) whether there is any prima facie or reasonable ground to believe that the accused had committed the offence; (ii) nature and gravity of the accusation; (iii) severity of the punishment in the event of conviction; (iv) danger of the accused absconding or fleeing, if released on bail; (v) character, behaviour, means, position and standing of the accused; (vi) likelihood of the offence being repeated; (vii) reasonable apprehension of the witnesses being influenced; and (viii) danger, of course, of justice being thwarted by grant of bail. (See: *State of U.P through CBI v. Amarmani Tripathi* (2005) 8 SCC 21; *Prahlad Singh Bhati v. NCT, Delhi & Anr.* (2001) 4 SCC 280; *Ram Govind Upadhyay v. Sudarshan Singh & Ors.* (2002) 3 SCC 598)

12. It is manifest that if the High Court does not advert to these relevant considerations and mechanically grants bail, the said order would suffer from the vice of non-application of mind, rendering it to be illegal. In *Masroor* (supra), a Division Bench of this Court, of which one of us (D.K Jain, J.) was a member, observed as follows:

“Though at the stage of granting bail an elaborate examination of evidence and detailed reasons touching the merit of the case, which may prejudice the accused, should be avoided, but there is a need to indicate in such order reasons for prima facie concluding why bail was being granted particularly where the accused is charged of having committed a serious offence.”

(See also: *State of Maharashtra v. Ritesh* (2001) 4 SCC 224; *Panchanan Mishra v. Digambar Mishra & Ors.* (2005) 3 SCC 143; *Vijay Kumar v. Narendra & Ors.* (2002) 9 SCC 364; *Anwari Begum v. Sher Mohammad & Anr* (2005) 7 SCC 326)

13. We are constrained to observe that in the instant case, while dealing with the application of the accused for grant of bail, the High Court completely lost sight of the basic principles enumerated above. The accused, in the present case, is alleged to have committed a heinous crime of killing an old helpless lady by strangulation. He was seen coming out of the victim's house by a neighbour around the time of the alleged occurrence, giving rise to a reasonable belief that he had committed the *murder*. We feel that under the given circumstances, it was not the stage at which bail under **Section 439 of the Code** should have been granted to the accused, more so, when even charges have not yet been framed. It is also pertinent to note that, as stated above, the Additional Chief Judicial Magistrate had rejected three bail applications of the accused but the High Court did not find it worthwhile to even make a reference to these orders. In this regard, it would be useful to refer to the following observations echoed in *Kalyan Chandra Sarkar v. Rajesh Ranjan @ Pappu Yadav & Anr.* (2004) 7 SCC 528:-

“In regard to cases where earlier bail applications have been rejected there is a further onus on the court to consider the subsequent application for grant of bail by noticing the grounds on which earlier bail applications have been rejected and after such consideration if the court is of the opinion that bail has to be granted then the said court will have to give specific reasons why in spite of such earlier rejection the subsequent application for bail should be granted.” (See also: Ram Pratap Yadav v. Mitra Sen Yadav & Anr. [\(2003\) 1 SCC 15](#))

14. For the foregoing reasons, the appeal is allowed, and the impugned order is set aside. The bail bond and the surety furnished by the accused in terms of the impugned order stands cancelled and it is directed that he will be taken into custody forthwith. Needless to add that observations touching the merits of the case against the accused are purely for the purpose of deciding the question of grant of bail and if in future any such application is filed by the accused, it shall be considered on its own merits untrammelled by any of these observations.

D.K JAIN, J.

H.L DATTU, J.